

Line 4

Case Name: *Anna Aleman v. Amazon Logistics, Inc., et al.*

Case No.: 24CV432259

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Anna Aleman moves under Code of Civil Procedure Sections 2030.220(a), 2030.300 *et seq.*, and 2030.300 (a)(1) to compel Defendant R-C Interstate Corp. (“Defendant”) to produce further responses to Plaintiff’s Form Interrogatories, Set One, Numbers 12.3 and 12.6. Notice of Motion (the “Motion”) at 1:26-2:4 (filed: Dec. 4, 2025); Plaintiff’s Separate Statement In Support of Motion at 1:25-10:13. The Motion is brought on the grounds that Defendant has provided meritless objections and evasive and incomplete statements in its responses to Form Interrogatories 12.3 and 12.6 and that Defendant’s responses do not establish a foundation for any privilege. *Id.* at 2:5-7.

The Motion came on for hearing on July 8, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Plaintiff served Form Interrogatories 12.3 and 12.6 on Defendant on June 20, 2025. Declaration of Noel D. Hibbard In Support of Motion (“Hibbard Decl.”) at ¶ 5 & Ex. A thereto.

Under California law, Defendant has a clear duty to provide verified Code-Compliant responses to these Form Interrogatories.

To be Code Compliant, Plaintiff’s verified responses for these straightforward Form Interrogatories must comply with Code of Civil Procedure Section 2030.220 by providing answers to each Form Interrogatory that are “as *complete and straightforward* as the information reasonably available” to Defendant permits. C.C.P. § 2030.220 (emphasis added).

To analyze whether Defendant complied with Section 2030.220 by giving a complete and straightforward response to the Judicial Council Form Interrogatory 12.3 and 12.6 at issue here, it is logically necessary to look at precisely what information these straightforward Form Interrogatories ask for.

Judicial Council Form Interrogatory 12.3 asks:

Have YOU or ANYONE ACTING ON YOUR BEHALF *obtained a written or recorded statement* from any individual concerning the INCIDENT? If so, for each statement state:

- (a) The name, ADDRESS, and telephone number of the individual from whom the statement was obtained;
- (b) The name, ADDRESS, and telephone number of the individual who obtained the statement;
- (c) The date the statement was obtained;
- (d) The name, ADDRESS, and telephone number of each PERSON who has the original or copy.

So Form Interrogatory 12.3 asks for a fact—did you obtain the written or recorded statement, Yes or No—plus names, addresses, and dates.

Judicial Council Form Interrogatory 12.6 asks:

Was a report made by any PERSON concerning the INCIDENT? If so state:

- (a) The name, title, identification number, and employer of the PERSON who made the report;
- (b) The date and type of report made;
- (c) The name, ADDRESS, and telephone number of each PERSON for whom the report was made; and
- (d) The name, ADDRESS, and telephone of each PERSON who has the original or copy of the report.

So Form Interrogatory 12.6 asks for a fact—was a report made, Yes or No—plus names, titles, identification number, dates, addresses, and telephone numbers.

The Court has carefully reviewed Defendant’s responses and objections to Form Interrogatories Nos. 12.3 and 12.6, as well as Defendant’s argument in its Opposition papers, and finds them to be as frivolous and evasive and *Non-Code-Compliant* as the undersigned Judge has ever seen in his time on the Bench or in the twenty years that he practiced as a civil litigator in California before taking the Bench.

First, these are *Judicial Council Form Interrogatories*—as simple and straightforward as interrogatories get—and there is nothing whatever “overly broad, unduly burdensome, not reasonably calculated to lead to the discovery of admissible evidence [or] insufficiently specific as to time and scope” about them. Defendant’s use of these boilerplate objections to these Judicial Council Form Interrogatories is shoddy, unprofessional, and unfounded. Do better.

And Defendant’s objection that Form Interrogatories 12.3 and 12.6 ask for attorney-client information and attorney work product is patently false—*read* what these Form Interrogatories actually ask for—and so fares no better. To try to prop up this baseless privilege argument, Defendant in its Opposition papers hurls a series of unremarkable and undisputed red herrings like these:

- “[t]he client has a right to refuse to disclose and prevent another from disclosing, a confidential communication between a client and lawyer”
- “attorney client privilege is absolute and disclosure may not be ordered”
- “[a] corporate client can in fact claim attorney-client privilege” and
- “a court cannot waive attorney client privilege and attorney work product if there is no privilege log provided with interrogatories.”

Opposition at 3:26-4:13. All true. But the glaring problem with Defendant’s argument is that Form Interrogatories 12.3 and 12.6 by their plain text do *not* call for any confidential communication, which is defined by California law as “information transmitted between a client and his or her lawyer in the course of that relationship and in confidence . . . and includes a legal opinion formed and the advice given by the lawyer in the course of that relationship.” Evid. Code § 952. A phone number is not legal advice.

Likewise, Form Interrogatories 12.3 and 12.6 do *not* call for any attorney work product because they do not ask for information that reflects “an attorney’s impression, conclusion, opinions, or legal research or theories[.]” C.C.P. § 2018.030(a). A date is not a legal theory.

And the reason Defendant does not and cannot cite a single analogous case where any California court upheld a claim of attorney-client privilege or attorney work product to avoid responding to Judicial Council Form Interrogatory 12.3 and 12.6 is because no such case exists because Judicial Council Form Interrogatory 12.3 and 12.6 do not call for disclosure of any confidential communication or attorney work product. To belabor the obvious:

- The fact whether Defendant *obtained* a written or recorded statement—Yes or No, which is what Form Interrogatory 12.3 actually asks—is not a confidential communication or an attorneys’ impression, conclusion, opinion, etc., and thus not protected from disclosure based on attorney-client privilege or attorney work product.
- Neither are *names, addresses, or dates* called for in Form Interrogatory 12.3 privileged confidential communications or attorney work product.
- Neither is the fact whether a report was made—Yes or No, which is what Form Interrogatory 12.6 actually asks for—a privileged confidential communication or attorney work product.
- Neither are names, titles, identification numbers, dates, addresses, and telephone numbers called for in Form Interrogatory 12.6 privileged confidential communications or attorney work product.

Hence, Defendant’s attorney-client privilege and attorney work product objections to the information actually asked for in Form Interrogatories 12.3 and 12.6 are unfounded and overruled by this Court. *And* Defendant’s response in the context immediately

following Defendant's baseless privilege objection that Defendant "is not in possession of any responsive *non-privileged* statements" is evasive and non-responsive. Defendant's responses are not complete and straightforward responses to Form Interrogatories 12.3 and 12.6 as Code of Civil Procedure Section 2030.220 requires.

For instance, Plaintiff is entitled to a complete and straightforward answer to the question asked by Form Interrogatory 12.3: Did Defendant obtain a written or recorded statement or not? Yes or no. Form Interrogatory 12.3 does not ask Defendant to disclose any privileged statements or contents *within* the written or recorded statement, so Defendant's privilege objection is evasive and off point.

Moreover, Defendant's argument about whether or not it needs to produce a privilege log now in response to Form Interrogatories 12.3 and 12.6 is evasive and off point because Form Interrogatories 12.3 and 12.6 do not call for any privileged information.

Likewise, Defendant's request that "it not be required to disclose any attorney work product and impressions about the accident" and "not [be required] to disclose any attorney-client communications" is self-serving nonsense because this is a Motion to compel Defendant to provide Code-Compliant responses to Form Interrogatories 12.3 and 12.6 and, as explained above, Form Interrogatories 12.3 and 12.6 do *not* call for disclosure of any confidential communications or attorney work product. So by ordering Defendant to provide further responses that are Code-Compliant to Form Interrogatories 12.3 and 12.6 within 20 days of today—which the Court now **ORDERS**—the Court is not telling Defendant to disclose any attorney-client information or attorney work product.

Which brings us to the issue of sanctions. Under Code of Civil Procedure Sections 2023.010(d) and 2023.030(a), this Court has full authority and broad discretion to impose a monetary sanction against Defendant right now for Plaintiff's reasonable attorneys' fees incurred for bringing this Motion that was fully justified in light of Defendant's refusal to provide complete and straightforward response to Form Interrogatories 12.3 and 12.6. The *only* reason that the Court is not imposing a monetary sanction on Defendant now is because Plaintiff, perhaps as a good-will gesture, did not ask for a monetary sanction in her Motion.

But Defendant should not mistake this generosity and mercy now by the Court as evincing the slightest hesitation of the Court to impose sanctions on Defendant in this case going forward if Defendant either violates this **ORDER** or fails to provide Code-Compliant discovery responses going forward in this case.

Defendant's deliberate evasion here of responding to these most simple and straightforward of discovery requests—*Judicial Council Form Interrogatories* for goodness' sake—is a misuse of the discovery process that Defendant and its counsel would do well never to repeat before the undersigned Judge again.

Conclusion & Order

Accordingly, Plaintiff's Motion is **GRANTED**. Specifically, the Court **ORDERS** Defendant within 20 days of today to provide Plaintiff with complete, straightforward, Code-Compliant further responses to Form Interrogatories 12.3 and 12.6.

Defendant and its counsel are put on **NOTICE** that failure to comply with this **ORDER** by providing Plaintiff with complete, straightforward, Code-Compliant further responses to Form Interrogatories 12.3 and 12.6 within 20 days of today may result in monetary sanctions against Defendant *and* its counsel, plus non-monetary sanctions including issue, evidence, and terminating sanctions.

SO ORDERED.

Date: July 8, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 5

Case Name: *Elizabeth Dawkins v. Annabelle A. Alday, et al.*

Case No.: 24CV451521

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Annabelle Alday (“Defendant”) moves under Code of Civil Procedure Sections 2023.010, 2023.020, 2030.300(d), and 2033.280:

- (1) to compel Plaintiff Elizabeth Dawkins (“Plaintiff”) to provide verified Code-Compliant responses to Defendant’s Form Interrogatories, Set Two, and Special Interrogatories, Set One;
- (2) to deem all matters specified in the Requests for Admissions, Set One, admitted by Plaintiff; and
- (3) for a monetary sanction against Plaintiff in the amount of \$1,819.17 for Defendant’s reasonable attorneys’ fees incurred for this Motion.

Notice of Motion (the “Motion”) at 1:25-2:4 (filed: Dec. 8, 2025).

The Motion came on for hearing on July 8, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

On August 28, 2025, Defendant served these Code-Compliant discovery requests on Plaintiff:

- Form Interrogatories, Set Two;
- Special Interrogatories, Set One; and
- Request for Admissions, Set One (“RFAs”).

Declaration of attorney Joshua R. Jachimowicz (the “Jachimowicz Decl.”) In Support of Motion at ¶¶ 4-6 (filed: Dec. 8, 2025).

Under California law, Plaintiff has a clear duty to provide *verified* Code-Compliant responses to these discovery requests. C.C.P. §§ 2030.210, 2030.220, 2033.210, 2033.240, and 2033.250. The deadline for those responses was September 30, 2025.

Despite that clear duty, Plaintiff never provided any responses to the Form Interrogatories, Set Two, and the Special Interrogatories, Set One. Jachimowicz Decl. at ¶ 12.

Regarding the RFAs, while Plaintiff provided an un-verified response to the RFAs